

The Cement Control Order, 1967

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Union of India - Act

The Cement Control Order, 1967

UNION OF INDIA

India

The Cement Control Order, 1967

Rule THE-CEMENT-CONTROL-ORDER-1967 of 1967

Published on 26 December 1967

Commenced on 26 December 1967

[This is the version of this document from 26 December 1967.]

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The Cement Control Order, 1967

Published vide Notification Gazette of India (Extraordinary), Part 2, section 3 (2), dated 26th December, 1967, vide S.O. 4590-IDRA/18-G-67, dated the 23rd December, 1967

Last Updated 26th July, 2019

In exercise of the powers conferred by Section 18-G and Section 25 of the Industries (Development and Regulation) Act, 1951 (65 of 1951), and all other powers enabling it in that behalf, the Central Government hereby makes the following Order, namely:

1.

Short title, extent and commencement.

(1)

This Order may be called Cement Control Order, 1967.

(2)

It extends to the whole of India.

(3)

It shall come into force on the 1st day of January, 1968.

1A.

[Applicability.

[Inserted by Notification No. S.O. 105 (E), dated 28th February, 1982.]

- [* * *]]

2.

Definitions.

- In this Order unless the context otherwise requires,-

(a)

["cement" means any variety of cement manufactured in India, and includes portland pozzalana cement, blast furnace slag cement, water-proof (hydrophobic) cement, rapid hardening cement, low heat cement, masonry cement and [high strength ordinary portland cement]

[Substituted by S.O. 562 (E), dated 30th September, 1975.]

but does not include oil-well cement and which and coloured cement (other than grey portland cement;

(b)

"controller" means the Controller of Cement Corporation of India Limited;

(c)

"producer" means any person who manufactures cement;

[* * *]

[Omitted by S.O. 168 (E), dated 1st March, 1989.]

(d)

[* * *]

[Omitted by S.O. 168 (E), dated 1st March, 1989.]

(e)

[* * *]

[Omitted by S.O. 168 (E), dated 1st March, 1989.]

3.

Power to prohibit removal.

- [* * *]

[Omitted by S.O. 168 (E), dated 1st March, 1989.]

4.

Power to direct sale or transport.

- [* * *]

[Omitted by S.O. 168 (E), dated 1st March, 1989.]

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5.

Power to direct disposal of stock.

- [* * *]

[Omitted by S.O. 168 (E), dated 1st March, 1989.]

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6.

Maintenance and production of accounts, etc.

(1)

Every producer shall keep such books, accounts and records, relating to the production, sale and transport of cement as the Central Government may require.

(2)

Every producer and every person employed by him in connection with the production, sale and transport of Cement shall, on being required so to do by the Central Government, and within such period as may be allowed in this behalf-

(a)

produce such books, accounts, records or other documents, and

(b)

furnish such returns and other information relating to the business, as may be specified by the Central Government.

7.

Retention prices.

- [* * *]

[Omitted by S.O. 168 (E), dated 1st March, 1989.]

.

8.

Price at which producer may sell.

- [* * *]

[Omitted by S.O. 168 (E), dated 1st March, 1989.]

.

9.

[* * *]

[Omitted by S.O. 168 (E), dated 1st March, 1989.]

.

9A.

[

[Substituted by S.O. 105 (E), dated 21st February, 1982.]

Every producer shall, in respect of the production of non-levy cement, pay to the Cement Regulation Account an amount at the rate of rupees nine per metric tonne of such production, within one month of the close of the month in which such production takes place.]

10.

[* * *]

[Omitted by S.O. 168 (E), dated 1st March, 1989.]

.

(vi)

[additional road transport charges, where allowed;]

[Substituted by S.O. 323, dated 12th January, 1968.]

[Provided that the total of charges to be fixed in respect of items (ii), (iii) and (iv) shall not exceed Rs. 20.00 per tonne:

Provided further that the charges in respect of items (ii), (iii) and (iv) as in force immediately before the 1st of October, 1975 shall not be increased by the State Government except with the previous approval of the Central Government;

Provided also that where the charges in respect of items (ii), (iii) and (iv) as in force immediately before the, 1st of October, 1975 exceed Rs. 20.00 per tonne of cement, such charges shall, on and from that date, be deemed to have been reduced to Rs. 20.00 per tonne of cement.]

[Substituted by S.O. 562 (E), dated 30th September, 1975.]

11.

Cement Regulation Account.

(1)

The Controller shall maintain an account to be known as the Cement Regulation Account to which shall be credited the amounts paid by the producer under [clause 9]

[Substituted by S.O. 415 (E), dated 22nd April, 1987.]

and such other sums of money as the Central Government may, after due appropriation made by law in this behalf [grant from time to time]

[Substituted by S.O. 323, dated 12th January, 1968.]

,

(2)

The amount credited under sub-clause (1) shall be spent only for the following purposes, namely,-

(i)

. paying or equalising the expenditure incurred by the producer on freight in accordance with the provisions of this Order;
(ii)

equalising concession, if any, granted in the matter of price for supplies to Government or for purposes of export under the second proviso to clause 8;

(iii)

expenses incurred by the Controller in discharging the functions under this Order subject to such limits, if any, as may be laid down by the Central Government in this behalf.

(iv)

[such expenses by the Development Commissioner for cement Industry as may be necessary for the purpose of increasing the production of cement, securing its equitable distribution and availability at fair prices]

[Substituted by S.O. 415 (E), dated 22nd April, 1987.]

(3)

The Controller shall cause accounts to be kept of all moneys received and expended by him from out of the Cement Regulation Account and he shall prepare and submit such report and returns relating to the said account as may be required by the Central Government from time to time.

(4)

The balance, if any, remaining unspent in the Cement Regulation Account shall be disbursed in accordance with such directions as may be given by the Central Government in this behalf.

12.

Power to vary the prices and to alter the Schedule.

- [* * *]

[Omitted by S.O. 168 (E), dated 1st March, 1989.]

.

13.

Delegation.

- [(i)]

[Clause 13 renumbered as (i) by Notification No. S.O. 197 (E), dated 9th April, 1979.]

All powers exercisable by the Central Government under this Order except under Clauses 8, 11 (2) and 12 shall also be exercisable by the Controller.

(ii)

[Without prejudice to the delegation of powers under sub-clause (i) above, the State Governments may exercise powers to the extent provided under proviso to Clause 4 of this Order.]

[Added by Notification No. S.O. 197 (E), dated 9th April, 1979.]

14.

Procedure regarding claims by producer.

- Every producer shall make an application regarding his claim for any reimbursement towards equalising freight or equalising concession in the matter of export price to the Controller who may, in settling the claim, require the producer to furnish all details relating thereto, including the cost of freight incurred, excise duty, if any, paid, etc.

[Schedule]

[Substituted by S.O. 172 (E), dated April 9, 1975 (w.e.f. 10.4.1975, again Substituted by Notification No. 105 (E), dated 28th February, 1982.)

Sl. No.

Name of the producer

Ex-Factory price per metric tonne (in rupee)

1

All producers

(i) Ordinary portland cement and portland slag cement Rs.

335.00

(ii) Portland pozzalana and masonry cement Rs. 320.00

Note. - (1) In the case of rapid hardening cement and low heat cement and additional price of Rs. 12 per tonne and in the case of water proof (hydrophobic) cement, an additional price of Rs. 21.00 per tonne may be added to the price

specified above.

(2)

In the case of high strength ordinary portland cement conforming to specification No. IS 1818/1976 an additional price of Rs. 12 per metric tonne may be added and an additional amount of Rs. 20 per metric tonne for every increase in the compressive strength at 100 kg. per sq. cm. or part thereof may also be added wherever there is such an increase in the compressive strength over the said specification.

(3)

Cement Corporation of India, Bokajan Unit, Mawmuluch Chherra Cement Limited, Cherrapunji and Cement Corporation of India, Rajaban Cement Works will be eligible in addition to the price given in the Schedule to an additional retention price of Rs. 114.34, Rs. 79.10 and Rs. 142.96 per metric tonne respectively.

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